

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 28, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Dr. Mark Rinne, Scott Roybal, and Tom Segrave. Absent were: Pete Laybourn and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 14, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming (license currently held by Dillinger’s, LLC d/b/a Dillinger’s, 1601 Central Ave., Cheyenne, Wyoming). There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1601 Central Avenue, Cheyenne, Wyoming (license held by Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming). There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Osterfoss Living Trust Dated May 20, 2020 d/b/a Nagel-Warren Mansion, LLC, 222 E. 17th St., Cheyenne, Wyoming. Jas Barbe, Inn-Keeper for Nagel-Warren Mansion, reported the mansion anticipates reopening in approximately 2 weeks. Mr. Barbe requested consideration for approval and provided history of his Wyoming residency and commented on the historic value of the mansion and his excitement in being a part of its continued service to the community. Supportive comments were voiced regarding the reopening and general support for downtown businesses. There being no further comments or input and purpose of the

hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to postpone to April 11, 2022, seconded by Mr. Segrave. It was noted that staff is working on the amendment language which is anticipated to be complete in the next 2 weeks. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) repealing UDC 5.4.7, UU – Urban Use Overlay District, and creating UDC 5.6.9, UU – Urban Use Overlay District. Mr. Cook moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4423)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public District to CB Community Business for land located southwest of and adjacent to the intersection of Cleveland Avenue and U.S. 30. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4424)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located southeast of the intersection of College Drive and Charles Street. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes”- all members of the governing body present.

ORDINANCE –2nd READING – Creating a new Section 9.01.010, Definitions of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Mr. Johnson moved to postpone to April 11, 2022, seconded by Mr. Roybal. Bob Wilson voiced support for the proposed postponement, and noted he is working with city staff on language amendments and expressed appreciation to Stefanie Boster, City Attorney, and council members Dr. Aldrich and Mr. Johnson for the attention to his concerns. Annette Williams expressed concern regarding the lack of support she feels she received at the March 22, 2022, Public Services Committee meeting. Ms. Williams explained she had requested to speak following completion of action taken on the committee agenda and was told it was not customary for council committee meetings to receive public comment except for comment relating to items on the agenda in proper order and she questioned this practice. It was noted that Public Services Committee Chairman Bryan Cook did allow Ms. Williams to speak as a courtesy. Mayor Collins explained that the governing body allows for public comment on general city business at the end of every City Council meeting and that they are not required to and have not allowed for public comment periods at standing committees for many years. Georgia Broyles, Youth Alternatives, questioned if there would be a process for School Resource Officers to ticket students violating the ordinance. It was noted the request would be looked into. Sam

Kayne and Pastor Tom Perea expressed support of the proposed postponement. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Repealing Ordinance No. 3465, and reestablishing and redefining ward boundaries within the City of Cheyenne -- referred to Public Services Committee. (SPONSOR – MR. COOK)

ORDINANCE – 1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule -- referred to Finance Committee. (SPONSOR – MR. WHITE)

ORDINANCE – 1st READING – Increasing the compensation for the Mayor of the City of Cheyenne, commencing January 1, 2025 -- referred to Finance Committee. (SPONSOR – MR. ROYBAL)

ORDINANCE – 1st READING – Increasing the compensation for members of the City Council of the City of Cheyenne and providing an effective date -- referred to Finance Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Uncommitting \$329,630.00 in General Fund Reserves approved to be used for the purchase of the former Hitching Post, Lot 1, Block 1, P.A.S. Subdivision by the City of Cheyenne Governing Body on July 22, 2019. Motion (per Consent Agenda) carried. (#6219)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Olivet Cemetery, 4th Filing, a replat of a portion of Olivet Cemetery, 3rd Filing and plat of a portion of the southeast quarter of the southeast quarter of Section 30, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Pershing Boulevard and Airport Parkway). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute maps containing technical corrections, seconded by Mr. Segrave. Motion to amend by substitute maps carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6220)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Rocking A at Sweetgrass, a subdivision of a replat of all of Lots 100 & 200, Block 15, Inclusive, Sweetgrass, 6th Filing and all of Tract U Sweetgrass, 2nd Filing along with a $\pm$ 61,911 sqft portion of abutting unplatted lands situated in the N1/4 of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located South of East Murray Road East and adjacent to Sweetgrass Drive). Motion (per Consent Agenda) carried. (#6221)

[CA] RESOLUTION – To authorize the application for the Suicide Intervention Grant in the amount of \$73,582.00 from Cheyenne Regional Medical Center for the City of Cheyenne, Office of Youth Alternatives. Motion (per Consent Agenda) carried. (#6222)

[CA] RESOLUTION – Approving water and sanitary sewer services, by outside user water and sanitary sewer services agreements, for Dean Byrne, for Lot 3, Energy Park One, situated in the

NE¼ of Section 33, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6223)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant Funding for the City’s mobile D.U.I. Command Vehicle (Highway Safety Behavioral Grant) – referred to Finance Committee. (SPONSOR – DR. ALDRICH)

[CA] RESOLUTION – For Governing Body support of Community forum(s) and other appropriate initiatives to encourage more kindness, civility, cooperation, and respectful dialogue – referred to Public Services Committee. (SPONSORS – DR. ALDRICH AND MR. LAYBOURN)

[CA] RESOLUTION – Directing City staff to repair the tree lawn area on Vandehei Avenue between Yellowstone Road and Stockman Street. (2019-2022 1% Sales Tax fund and General Fund Reserves) – referred to Public Services Committee. (SPONSOR – MR. SEGRAVE)

Agreement between the Board of Public Utilities and Polo Ranch Company regarding Quarter Circle Five subdivision well development and associated water entitlement. Hank Bailey advised he is on the Polo Ranch Company Board of Directors and has proposed language to satisfy legal terms of the agreement. Mr. Bailey provided information relating to past and proposed water usage involving rural properties and future development of residential homes. Levi Martin, area resident, voiced concerns involving the city relinquishing water rights, fairness and previously agreed upon policy terms. Brad Brooks, BOPU Director, upon inquiry provided information involving a previous water usage study completed in Laramie County. Mr. Brooks provided information relating to proposed water usage allowances and actual usage on the Polo Ranch and requirement of the ranch to pay for any overuse, noting the Polo Ranch water usage is monitored. Mr. Brooks reported a previous Supreme Court opinion that determined a use of .7 acre feet per minute for county residential properties and advised he feels that is a fair assessment. It was noted that the water use of the proposed residential home development would not be metered. Comment was made that the state allows for up to 25 acre feet per minute for rural wells. Mr. Brooks further noted that the proposed assessment provides a savings to the aquifer over all, noting support of the stipulations in this agreement. Information was provided regarding the 1955 agreement. Mr. Johnson moved to approve, seconded by Mr. Segrave. Mr. Johnson moved to amend by adding #10 which states “the Polo Ranch Company hereby acknowledges the binding rulings of the Wyoming Supreme Court in their 1998 and 2003 opinions in litigation involving Polo Ranch Company and the City of Cheyenne and hereby expressly agrees that the 1955 Drilling and Water Use Agreement between the City of Cheyenne and John and Marie Bell has been finally and fully adjudicated and that the Polo Ranch has no claims or causes of action against the City of Cheyenne based on that Agreement or its implementation.”, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook and Dr. Rinne voting “no”. (#7487)

[CA] Contract between the City of Cheyenne, the City of Cheyenne Board of Public Utilities, and McGee, Hearne & Paiz LLP for financial and compliance auditing services for fiscal the year ending June 30, 2022 (General Fund). Motion (per Consent Agenda) carried. (#7488)

Agreement between the City of Cheyenne and the Cheyenne Umpire's Association to umpire and score the Recreation Division Adult Softball Leagues and Tournaments for 2022 (Recreation Programs Fund). Mr. Johnson moved to approve, seconded by Mr. Segrave. Mr. Johnson voted no. (#7489)

[CA] 2022-2023 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#7490)

Development Agreement between the City of Cheyenne and Laramie County School District Number One to outline responsibilities for public infrastructure improvements relating to the Coyote Ridge Elementary School Project (2019-2022 1% Sales Tax). Mr. Johnson moved to approve in an amount not to exceed \$177,000, seconded by Mr. Roybal. Planning & Development Director Charles Bloom advised the agreement allows for the city to contribute to funding for improvements on Carlson Road, a land swap for land located near South High School and Harmony Valley. Mr. Bloom reported the city can ask for improvement reimbursement when adjacent land is developed in the future and that when the land is developed, the developers will be required to pay the city for the road. It was noted the city will recoup approximately \$76,000 for the land swap. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson voting "no". (#7491)

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Renewable Diesel Company, LLC, to designate HollyFrontier as the presenting sponsor of the 2022 Superday, Superday Tour de Prairie and Superday 5K Walk/Run (Revenue to the City). Motion (per Consent Agenda) carried. (#7492)

[CA] Contract between the City of Cheyenne and Nova Health Care Center for occupational medicine services (General Fund) – referred to Finance Committee.

[CA] Memorandum of Agreement with Arts Cheyenne for the installation of public art in the City Right of Way – referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2022 Cheyenne Frontier Days celebration – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Waste Management of Colorado, Inc. for the Recycling Services Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and V & M Properties, LLC for property located at 1800 Westland Road, Cheyenne, Wyoming, for the purpose of relocating

the Cheyenne Transit System office and transfer station (Federal Grant WY-2021-005-00 and Transit Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Engineering & Consulting Alliance for the Landfill Tent Building deconstruction and replacement (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7430 between the City of Cheyenne and Reiman Corp for the Carey Avenue Multi Use Path Project (2019-2022 1% Sales Tax, Specific Purpose Sales Tax and WYDOT TAP Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,484.00). (#7430)

[CA] Consideration of Bid #E-14-22 for furnishing two (2) new 2022 4WD 72” front- mount mowers for the City of Cheyenne, Community Recreation & Event Department-Parks Division (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Heartland Kubota, Sheridan, WY, in an amount not to exceed \$74,350.00).

[CA] Consideration of Bid #E-16-22 for furnishing bituminous asphalt hot mix, tack oil, and cold mix on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Knife River d/b/a JTL Group, Inc. Cheyenne, in an amount not to exceed \$434,500.00).

[CA] Consideration of Bid #E-17-22 for furnishing aggregates on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Croell Inc., Cheyenne, in an amount not to exceed \$37,500.00).

[CA] Consideration to purchase between the City of Cheyenne and MED-ENG, LLC, for the purchase of two (2) bomb suits for the City of Cheyenne, Cheyenne Police Department (U.S. Department of Homeland Security Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$71,318.00).

[CA] Consideration to purchase between the City of Cheyenne, Cheyenne Fire & Rescue Department, and Stryker, Portage, MI, for equipment maintenance services. (General Fund) Motion (per Consent Agenda) carried (in an amount not to exceed \$59,388.75).

[CA] Consideration of Bid #E-8-22 for a contract between the City of Cheyenne and Pine Bluffs Gravel & Excavating for Yard Waste Material Hauling and Fill Dirt Hauling for the City of Cheyenne, Compost Facility (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-19-22 for furnishing 95 Gallon Automated Refuse Carts for the City of Cheyenne, Sanitation Division (Solid Waste Fund) - referred to Finance Committee.

[CA] Request to approve an additional dispensing area for City of Cheyenne Limited Retail Liquor Licensee Cheyenne Country Club, located at 800 Stinner Rd., Cheyenne, Wyoming-referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointments for Erin LeBlanc to the Board of Adjustment and Elizabeth Bales to the Historic Preservation Board. Mr. Roybal moved to approve, seconded by Mr. Segrave. Mayor Collins upon inquiry provided information on the application and selection process for mayoral appointments to boards and commissions. Mayor Collins noted that it is possible for individuals to serve on multiple community boards at the same time and that the application by Elizabeth Bales was not vetted by the Historic Preservation Board prior to his recommendation to appoint Ms. Bales to the board. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointment).

Announcement was made of a Public Hearing to be held April 11, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to hear public comment regarding the City’s intent to purchase property located at 1800 Westland Road, Cheyenne, Wyoming for the purpose of relocating the Cheyenne Transit System Office and Transfer Station.

Announcement was made of a Public Hearing to be held April 11, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for one available retail liquor license application filed with the City Clerk’s Office by Ace’s Range LLC d/b/a Ace’s Range LLC, 1505 Pioneer Ave., Big D Oil Co. d/b/a Big D Oil #56, 4100 Whitney Rd., Billy Jacks - Wyoming LLC d/b/a Billy Jack’s Pizza Pub, 4020 Airport Parkway West, Suite 1, Capitol Cuisine LLC d/b/a Ike’s Bar & Grill, 122 W. 6th St., Ful-O-Pep d/b/a The Old Cheyenne Elevator, 800 W. 21st St., Get Bent, LLC d/b/a Get Bent, LLC, 707 W. Lincolnway, Maurice W. Brown d/b/a Town & Country Supermarket Liquors-North, 2120 Carey Ave., Space 1, Peaches’ Package Liquor & Bar LLC d/b/a Peaches’ Package Liquor & Bar LLC, Anderson Corner, 3rd Filing, Lot 2, Block 1, Vitamin College Natural Food Markets, Inc. d/b/a Natural Grocers, 1851 Dell Range Blvd., Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St. and Wyoming Downs OTB 14 LLC d/b/a Wyoming Downs OTB 14, 1345 Dell Range Blvd., Cheyenne.

Under other business:

Annette Williams advised that she felt that she did not get the same treatment at the March 22, 2022 Public Services Committee as other members of the public and felt disrespected. Ms. Williams requested approval to hang military memorial banners in downtown and other areas of town during the Veteran’s Day holiday. She noted that family members of fallen military would be paying for the banners and the brackets will be used if approved by the Board of Public Utilities. Ms. Williams inquired about amending the current UDC and City Code sign regulations to allow for banners to be hung during certain time frames. Mayor Collins advised that unfortunately by allowing one group to hang banners it opens up the possibility that the city would be required to allow any group to hang banners. Mayor Collins advised groups such as “hate groups” that may offend others would be allowed to hang their banners and reported that other Wyoming towns have been sued relating to this issue. Mayor Collins reported that he is looking into options to allow

groups such as the military to be able to be honored in ways suggested by Ms. Williams. Ms. Williams inquired about scooters randomly placed around town and if that was a code violation. City Attorney Stefanie Boster advised they are not in violation of right of way ordinances.

Jim Ridgeway commented on revisions made to recent bid inquiries involving city surplus firearms. He voiced concerns relating to the city's ability to sell firearms without serial numbers, absence of visual inspection either in person or by photographs and method of current storage by the city.

Mayor Collins upon inquiry advised the Municipal Building repairs are near completion and that there does not appear there were financial savings during staff's absence from the building during the past 6 months.

Bob Wilson voiced support for the postponement on the ordinance relating to creating a new Section 9.01.010-Definitions of Title 9 Public Peace and Welfare and looking into code changes relating to community signage.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:15 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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